

Women's Mobilization and Gender Outcomes in Transitions to Democracy

The Case of South Africa

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This article explores the conditions under which women's mobilizations during transitions to democracy can achieve some of their aims. It broadens the comparative analysis of gender and transitions undertaken to date by looking at a case in which gender outcomes, measured in terms of women's descriptive and substantive representation, have been relatively positive. Unusually women, organized as women, had some input into the negotiations during the South African transition. The article argues that a complex interaction of variables contributed to the achievement of certain positive gender outcomes. A broad women's coalition, the Women's National Coalition, did play an important role. However, two other sets of factors—a favorable political opportunity structure and the strategic actions and alliances of certain key women actors—made a crucial contribution to its effectiveness in influencing this transition, as women's mobilization on its own is no guarantee of success.

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The question of how far transitions to democracy can fulfill the hopes for greater political inclusion on the part of those women who organized to bring an end to nondemocratic regimes has preoccupied scholars and

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activists. However, the majority of transitions have been disappointing in gender terms, bringing few positive gender outcomes in their immediate aftermaths.¹ The South African case has been seen as an exception. Women's descriptive and substantive representation were improved by the adoption of a new constitution with gender equality enshrined within it, the establishment of a package of state women's machineries (SWMs) in the form envisaged by women activists, high levels of women's representation in the executive and parliament (27.7%), and policy outcomes such as more progressive laws on domestic violence and reproductive rights. In contrast, immediately after the majority of transitions in Latin America and East Central Europe, women's descriptive representation was low almost everywhere. Women formed an average of only 8.8% of the representatives elected at the first elections in East Central Europe, and the figures were lower in Latin America. Initially, many countries either maintained the constitution designed by the nondemocratic regime or returned to the previous one; although many states did create SWMs, they were often weak, tokenistic bodies established from the top down. Finally, transitions brought few improvements in key areas of gender policy such as reproductive rights. Indeed, in parts of Eastern Europe there has been some retrenchment, for example, in terms of access to abortion.

South Africa is also one of the only cases in which women organized as women had some input into the negotiations that established a new political system as part of a transition to democracy.² Indeed, the activities of a broad umbrella group, the Women's National Coalition (WNC) that organized for a short period prior to the first nonracial elections held in 1994 are often accorded special significance. How far can these positive gender outcomes be attributed to women's organizing?

Drawing initially on the experience of Latin America, much early research on women and transitions focused primarily on the roles played by women's movements without giving much consideration to the context within which they were operating (Chuckryk, 1991; Franceschet, 2001; Schild, 1998). As a result, it was often unable to explain an apparent paradox: Why was it that some of the most vibrant women's movements active during the breakdown of authoritarianism did not have more success in achieving increased levels of women's descriptive and substantive representation soon after the restoration of electoral politics? In Brazil and Chile a broad range of women mobilized prior to and during the transition (Baldez, 2002; Chuckryk, 1991; Jaquette, 1991). In both cases, despite gains such as the framing of the new Brazilian constitution and the establishment of Servicio Nacional de la Mujer (SERNAM), the Chilean SWM,

feminist academics and activists were disappointed with the lack of sustained improvement in descriptive and substantive representation in the immediate aftermath of the transitions (Alvarez, 1990; Htun, 2002; Schild, 1998; Waylen, 1998). Women formed only 5.3% of the legislature in Brazil in 1987. Explanations for these relatively poor gender outcomes were frequently couched either primarily in terms of the mistaken actions of the movements themselves or in blanket dismissals of political systems as male dominated. Analyses of East Central Europe have been incorporated into the gender and transitions literature (Gal & Kligman, 2000; Jaquette & Wolchik, 1998; Sperling, 1999; Waylen, 1994). However, despite marked variations in the different transitions from state socialism, the resulting institutional configurations and the often-negligible roles played by women's movements, outcomes in East Central Europe have also been seen as largely negative in gender terms (Einhorn, 1993; Funk & Mueller, 1993). This article incorporates another case—that of South Africa—into the gender and transitions literature that can not only develop cross-regional analysis but can expand outcomes, allowing us greater variation on the dependent variable and increasing the validity of the inferences that can be drawn (Bunce, 2003).

Isolating the significant components of an unusual case such as this one, therefore, allows us to reflect more widely on the explanations for different gendered outcomes in other contexts. It will help us to understand the more general conditions that are necessary for positive outcomes to occur and also explain some apparently paradoxical cases where active women's movements were not able to achieve similarly positive outcomes in other transitions to democracy. We can use our knowledge of South Africa to extend our understanding of cases such as Brazil and Chile and contribute to the development of the comparative literature on gender and transitions.

This article, therefore, goes beyond the more frequently asked question of when, during transitions to democracy, women mobilize based on their gender identity for increased participation and gender reform (Baldez, 2003). It explores the conditions under which such mobilizations will achieve some of their aims, arguing that the achievement of certain positive gender outcomes is the result of a complex interaction of different variables. A women's coalition such as the WNC can play an important role, and it is impossible to envisage positive gender outcomes without the efforts of an organized women's movement.³ However, two other sets of factors also make an essential contribution to the effectiveness of a broad coalition of women in influencing any transition, as on its own, women's mobilization is no guarantee of success. These two sets of factors must be explored alongside women's mobilization.

First, if we examine the conditions under which women will mobilize during transitions, we see that the formation of a broad coalition such as the WNC could not have occurred if certain conditions regarding resources, the framing of issues, and political opportunities had not already been fulfilled (Baldez, 2003).⁴ Many of the conditions that facilitated the incorporation of gender concerns into the South African transition were in place prior to 1990. There was already a long-standing history of women's organizing that was seen as a legitimate part of the broad opposition movement to apartheid that espoused a discourse of equal citizenship for all. However, the existence of an effective women's movement is not sufficient in itself to influence the transition process. In South Africa, the relatively favorable political opportunity structure (POS) within which the women's movement was operating was a key enabling factor. The pacted transition in which elites from the nondemocratic regime negotiated the settlement with the opposition as a part of quite a lengthy formal process offered unusual opportunities for intervention into the negotiations themselves.⁵ In addition, the opposition, dominated by the African National Congress (ANC), was relatively open to gender concerns.

Second, the internal characteristics of a movement enable it to be effective. We must differentiate between feminist groups and activists (distinguished by their goals and ideas) and broader women's movements, as too often they are assumed to be one and the same. We need to assess the strength and autonomy of women's movements. In addition, we must analyze their different activities, in particular their engagement with different parts of the process of transition and their relationships with other groups and institutions. It will then be easier to discern how far and why a movement could put issues on the agenda or even shape policy outcomes. The WNC was a coalition that allowed a 'triple alliance' of women academics, politicians, and activists—many of whom were feminists—to act strategically to articulate gender issues at a crucial point during the transition. As a result of these relatively favorable conditions, gender issues were placed on the policy agenda of the transition, and important achievements such as the interim constitution laid the ground for the further positive gender outcomes. However, gender issues that have already been articulated by organized (often feminist) women and an effective and independent women's movement must not only stay on the policy agenda but also must be subsequently translated into positive policy outcomes (Weldon, 2002). The South African case also differs in this regard from others where active women's movements have had less success in achieving their aims. Despite a decline in women's organizing, in the posttransition period effective alliances of

feminists, activists, and academics together with “sympathetic insiders” within government and parliament were initially able to capitalize on the substantive gains that had already been achieved. They were active within an institutional structure dominated by the left-leaning ANC that could still offer some favorable opportunities.

However, as we will see, certain outcomes have been easier to achieve than others. Increases in women’s descriptive representation have been more marked than increases in substantive representation; and, because of problems in implementation and enforcement, formal reforms have not always resulted in meaningful change.

To determine the conditions under which positive gender outcomes may result during a transition to democracy and assess how far women’s descriptive and substantive representation has increased in the South African case, we examine each critical phase of the transition sequentially. This structure will help to demonstrate the importance of conditions prior to the transition and the wider context subsequently. An investigation of the institutional context and its impact on gender outcomes at different phases of the transition will help us explore the circumstances in which women’s movements can have some impact on the context within which they operate, and how they and their activities are shaped by that context (e.g., in terms of their opportunities, conditions, and constraints). It also allows us to determine how far a particular path or historical sequence, such as the type of transition and the institutional legacy of the previous nondemocratic regime, is a significant factor subsequently.⁶ We can then assess the extent to which the nature of key institutions and actors in the conventional political arena, such as political parties and their interaction with women’s movements, shape outcomes. This increases our knowledge of the complex interaction of the different factors that determine how far women’s organizing can be effective during transitions to democracy. We can then use the analysis to make a brief comparison with Chile as one case where women’s mobilization during the breakdown and transition was not translated into substantial gains in the immediate posttransition period.

Each crucial phase in the overall process—the nondemocratic regime and its breakdown, the transition itself, and posttransition outcomes—corresponds to a section in the article. This division not only allows us to assess the importance of different actors and their interaction with the institutional context at each critical juncture, but also gives us a clear idea of exactly how the transition unfolded in gender terms. To assess the nature of the institutional legacy of the preexisting nondemocratic regime and its impact on subsequent phases, we begin with a discussion of the apartheid

regime and its breakdown. The data used in this article are drawn from a range of secondary and primary sources, documentary, archival, and interview based, collected in South Africa in 2003.

The Apartheid Regime and Its Breakdown

We cannot understand either the institutional context or women's mobilization during the transition to democracy without understanding how the nature of the nondemocratic regime and its breakdown structured the subsequent transition and its outcomes. The apartheid regime, formally created in 1948, differed from other authoritarian regimes because of the overt salience of race. South Africa was an oligarchic society organized around extreme social, economic, and political inequality enshrined in a tripartite racial structure that privileged the White minority at the expense of the Black majority (Wood, 2000). The National Party (NP) was continuously in power until 1994 and dominated the Whites-only parliament in which there was no effective opposition. The apartheid regime was enforced through repression and restrictions, for example, on where different communities could live and work, policed through the infamous pass laws.

Apartheid, therefore, had a different impact on different groups of women according to their race. They were subject to different legal codes and restrictions (Gaitskell & Unterhalter, 1989; Meintjes, 1998; Seidman, 1993). White women were subject only to South African law that gave them significant legal benefits over other women, such as the right to vote, but discriminated against them in comparison with White men, for example, in property and tax laws. In addition, access to abortion was restricted, and there were no effective laws against domestic violence (Seidman, 1993, p. 296). Black women were also subject to customary law that institutionalized gender difference in many parts of their daily lives. For example, it technically denied them adult status so that they could not own or inherit property or gain credit, and rights over children also remained with men (Meintjes, 1998, p. 65). Black men and women were also subject to different regimes under the migratory labor system and movement restrictions imposed on the non-White majority. Apartheid, therefore, had within it a very conservative vision of gender relations that saw White women primarily as mothers within traditional families but frequently divided Black mothers and their children (Gaitskell & Unterhalter, 1989).

Despite the often-high levels of repression, there was long-standing mass organizing against apartheid. It included significant organizing by

women from all races that had a lasting impact on women's organizing during the transition in a number of ways. First, the longevity of the formal and informal networks among South African women was an important and necessary antecedent to the formation of the WNC. Best known are the activities of the Federation of South African Women (FSAW), a self-avowed multiracial umbrella women's organization whose federal structure brought together women from a number of ethnically based organizations (Walker, 1982, p. 172).⁷ The Federation of South African Women (FSAW) drafted a Women's Charter that saw women's equality as part of national liberation. It also organized mass resistance to the extension of the pass laws to Black women culminating in the march of 20,000 women in Pretoria, South Africa, in 1956 (Walker, 1982, pp. 153-188). However, new forms of women's organizing also emerged in South Africa in the 1980s. Community-based women's organizations, made up of predominantly poor women active in day-to-day struggles around rent, services, and health, flourished (Beall et al., 1987). A vibrant Black Rural Women's Movement (RWM) developed, and three broad regional women's organizations began organizing against apartheid in which individual women organized together on a cross-class, cross-racial basis for the first time (Kemp, Madlala, Moodley, & Salo, 1995, pp. 144-46). By the end of the 1980s, women within South Africa were beginning to organize more self-consciously around gender issues even if they did not use the term *feminism* overtly.

Second, the political opportunities provided by the struggle against apartheid and the nature of the transition itself conditioned the emergence and mobilization of the women's movement. The framing of women's movement demands and their articulation were shaped by the importance of the discourse of rights and citizenship within the opposition to apartheid. The Women's Charter Campaign was part of a campaign linked to the rights-based Congress Alliance whose creation in the 1950s was a key moment in the development of the multiracial opposition (Kimble & Unterhalter, 1982). In 1955, the Congress Alliance produced the Freedom Charter outlining the conditions for a nonracial South Africa, using a discourse of rights and equal citizenship. Women's organizing in the 1980s was also part of the mass movement against apartheid associated with the "civics" (community-based organizations) and an umbrella organization, the United Democratic Front (UDF). It was generated by the ill-fated program of "conservative modernization" introduced to stave off the structural crisis and continued opposition evident at the beginning of the decade (Seekings, 2000; Wood, 2001).

Women's activities had, therefore, been accepted as part of the broad opposition. A range of women's organizations had struggled against apartheid

for many decades, and claims for gender equality had become part of much of the opposition's "charterist" and rights-based tradition. Leading the opposition was the ANC, a multiracial national liberation movement on the left of the political spectrum that held ideological beliefs favoring equality and equal rights for all making it relatively open to gender claims. Its women's organization, the ANC Women's League (ANCWL) had played an important role in FSAW and the Women's Charter. The ANC itself was an important member of the Congress Alliance in 1950s, and the discourse of rights that the Freedom Charter embodied remained a significant part of ANC doctrine. However, with the increase in repression in the 1960s, the ANC went into exile, created an armed wing, Umkhonto we Sizwe (MK), and adopted the more radical rhetoric of national liberation adding another strand to its beliefs.

Finally, central to developments after 1990 was the growing awareness and organization of a range of different women around gender issues and the increasing support for feminism prior to the transition. As we have seen, during the 1980s women in South Africa began to organize more self-consciously as women. Women activists within the ANC in exile, often influenced by women's organizing within South Africa, international feminism, and the disappointing experiences of other national liberation movements, also began to agitate for different understandings of gender issues (Hassim, 2002b, p. 223). At conferences and workshops, ANC women activists raised the issues of women's low representation within the ANC (only 3 of the 35 members of the National Executive Committee [NEC] were women in the late 1980s) and the need for new understandings of the relationship between national liberation and women's liberation, openly questioning the assumption that the first would automatically lead to the second (Albertyn, 1994, p. 47). As a result of their activities and support from some sympathetic leaders such as Oliver Tambo, they forced the ANC to give greater consideration to gender. By the beginning of the 1990s, the ANC leadership had publicly accepted the legitimacy of the "gender agenda," such as the need for positive action to increase the number of women in important positions in the ANC; for the re-creation of the ANCWL that had been defunct since the 1960s; for a mass women's movement; and for a campaign for a charter of women's rights "that will elaborate and reinforce our new constitution" (National Executive Committee of the African National Congress, 1990). However, ANC women activists realized that on their own they did not have sufficient power or influence to achieve their goals.

By the end of the 1980s, a synergy therefore existed between the internal activists and ANC women in exile in terms of their activities and debates (Hassim, 2002b, p. 175). Both groups came together at the Malibongwe

Conference in January 1990. It was convened by the ANC women's section to discuss such issues as how to include gender equality in the future constitution, women's political representation, national women's machineries, and the need for a national women's movement (*Malibongwe Papers*, 1990). Significantly, the word *feminism* was used in the final document that also recognized that "national liberation in South Africa does not automatically guarantee the emancipation of women" (*Malibongwe Papers*, 1990, see Programme of Action). All the participants recognized the need for a strong autonomous mass movement that could fight for gender claims and that a strategic intervention into the transition was necessary if women were to ensure that some of their basic demands for the new South Africa were to be achieved.

Just 2 weeks after the Malibongwe conference, the ANC was "un-banned" in February 1990, and a negotiated transition was formally under way. After a decade of "conflict and constitutional tinkering," all sides had realized that apartheid was unsustainable and only a political solution could bring a resolution (S. Friedman, 1993a, p. 7). The negotiated nature of the transition meant that big changes in the political sphere were inevitable; however, it was assumed that White economic advantage would be safeguarded and that the new government would inherit a largely unchanged state structure that had been created to support and uphold apartheid. Negotiations would, therefore, focus on political, rather than social or economic issues, designing the political system and new constitution. This position was acceptable to the ANC (expected by all to form the basis of the new government), as despite its radical rhetoric, it had, according to Marais (2001, p. 85) always privileged the political over the economic with an emphasis on winning state power and the importance of liberal doctrines of democracy, civil rights, and equal citizenship for all regardless of race. This institutional legacy would, therefore, affect the size of the policy window for changes to civil, political, and socioeconomic rights as well as gender inequalities (Htun, 2002).

The Transition

At the beginning of the pacted transition, certain actors (groups and individuals) were poised to play key roles. Although it is impossible to talk of a coherent women's movement at this point, experienced women activists were determined that women's claims for equality, put on the agenda as a legitimate part of opposition demands, would not be left out of the transition. African National Congress women activists also recognized their weakness within their own organization and the strategic need for a broad women's organization.

A range of women activists had already given serious thought to the future constitutional arrangements most likely to promote gender equality. It had been recognized that the ANC rights-based "charterist" tradition, proclaiming that all races should be incorporated into citizenship on equal terms, could also be used to increase the policy window available to reduce gender inequalities. Despite apartheid, between 1990-1994 women were able to be relatively united across the deep racial and other historical divides that separated them (Albertyn, 2003, p. 101). It was in this context that the WNC was formed.

A key spur to the formation of the WNC was the fear of and the experience of exclusion from the agenda-setting process during the transition itself (Hassim & Gouws, 1998). After a long period of planning, it was officially launched in April 1992. It was set up on the initiative of the by now re-formed ANCWL but was an independent organization that could articulate its demands independently of the ANC. The WNC had a twofold role. First, it was to contribute to building a national women's movement through a grassroots campaign to draft a charter for women's equality. Second, it was to influence the national political process of writing the constitution and designing the new political system (Albertyn, 1994, p. 51). The charter campaign was ambitious in its scope. It was to be a mobilizing and educating process, achieved through huge program of participation and consultation. The charter was also to provide the basis for intervention into the constitutional negotiations. The WNC's two aims were not always compatible. Inevitably, the charter took a long time to produce and was ratified after the draft constitution had been drawn up (Women's National, Coalition, 1994). But intervention into the negotiations required a speed and strategic flexibility that often precluded wide consultation. However, all the participants realized that without action from women organized as women, to fight for inclusion to make claims for equality, there was a danger that they would be marginalized.

The WNC possessed certain characteristics that made it effective. Its organizational capacity was good; and despite some internal disagreements about tactics, it could strategize, campaign, and lobby in a range of different fora (Albertyn, 1994, p. 52; Hassim, 2002a, p. 710). It could also bring together other initiatives, for example, through conferences where nongovernmental organizations (NGOs) could put forward designs for a future state women's machinery (Albertyn, 1992; Albertyn, Hassim, & Meintjes, 2002, p. 35). It was capable of action independent of other groups and organizations. Even though it had close ties with the ANCWL, it was not controlled by it, as the ANCWL could not be hegemonic within the wider women's movement or within the WNC because of its weak links to internal women's organizations. It could also claim to represent a wider constituency of women of all races,

through the large number of organizations affiliated to it and its consultation process. By 1994, it consisted of 13 regional coalitions and 90 individual organizations that ranged from political parties, religious groups, to the girl guides, coming together across geographical, racial and class lines (Cock, 1997).

Finally it contained within it a critical mass of experienced feminist activists and academics from all races who had clear ideas about a range of gender issues such as women's political representation, the nature of the future constitution, and a national gender machinery. Although the number of key actors involved was small, the WNC was the vehicle that facilitated a "triple alliance" of key women activists, academics, and politicians of all races, many of them elite members who were well connected in the ANC, to engage with the transition processes and achieve what none could have done on their own.

When established, the existence of a women's coalition such as the WNC was not sufficient in itself to influence the transition process. The broader context within which women actors were interacting was also crucial. During the phase of the negotiations when the shape of the political system and the constitution was decided, the institutional context was sufficiently open to women activists that they were able to ensure that certain gender concerns were incorporated into the settlement. The political system was designed in elite-level, multilateral, and bilateral negotiations, many of which were held secretly between the political parties, particularly the ANC and the NP (Seekings, 2000, p. 294). However, it was unusual that the negotiations were sufficiently open to allow interventions by organized women. In response to the inclusion of only 23 women of 400 delegates to the first round of negotiations in the Convention for a Democratic South Africa (CODESA), women activists did achieve a (largely symbolic) victory in 1992 with the establishment of a multiparty Gender Advisory Committee (GAC) as a working group to monitor the negotiations and make recommendations after the ANCWL pressured the ANC to support the proposal.⁸

Building on the mixed experience of CODESA, in the second round of negotiations, the Multi-Party Negotiating Process (MPNP) established in March 1993, the WNC identified three tasks it had to undertake: first, to secure the inclusion of women in the party negotiating teams; second, to ensure the inclusion of nonsexism in the constitutional principles; third, to secure the inclusion of an equality clause in the constitution that would override customary law (Albertyn, 1994; Hassim & Gouws, 1998). The first aim was achieved relatively easily. One delegate from each party and government negotiating team was to be a woman. However, the technical committees that drafted the reports that made up the constitution contained very few women, and the exclusionary informal male networks that operated during

the negotiations acted to diminish the influence of the women's delegates (Albertyn, 1994). Women activists organized around the second and third aims. The WNC protested about the exclusion of a nonsexism clause in the first draft constitutional principles and lobbied around the equality clause on its own account.⁹ The equality clause was in direct conflict with customary law and resulted in a big battle with the traditional leaders who wanted customary law to be excluded to safeguard forms of inheritance, property and marriage. The WNC, and within it the RWM, argued that to exclude customary law would be to exclude the most oppressed and marginalized groups, namely Black women (Albertyn, 1994, p. 59). After up-to-the-last-minute negotiations, the dispute was resolved in favor of the women's lobby; and as part of the attempts to get a solution, promises were made to establish a Commission for Gender Equality and a Council of Traditional Leaders (Albertyn, Goldblatt, Hassim, Mbatha, Meintjes, 1999, p. 93).

The triple alliance, facilitated by the WNC, played an important role as women (legal) academics advised women politicians and activists, particularly within the ANC, ensuring that they could achieve more influence over this second round of negotiations than over CODESA (Albertyn et al., 1999, pp. 12-13). The WNC set up a monitoring team to monitor the technical committees and the Negotiating Council and advised the cross-party Women's Caucus that existed among women delegates from the different political parties (S. Camerer, interview, July 28, 2003).¹⁰ The synergy of this triple alliance, helped by the WNC, enabled strategic interventions to take place within the MPNP that none of the partners in the alliance could have achieved on their own.

However, to achieve positive policy outcomes, it is not enough just to articulate gender issues and get them on the policy agenda. Close contact and effective interaction between women activists outside the ANC and "sympathetic insiders" within the ANC and ANCWL played an essential role in ensuring that gender issues could become positive gender outcomes in the posttransition period. The institutional context also played a key part. It was clear from the beginning of the transition that, after its transformation from a national liberation movement with highly organized structures outside South Africa, the ANC would be the most influential political party. The nature of the ANC as a left-wing party committed to equality based on equal citizenship for all made it easier for feminists within it to get gender issues incorporated into ANC policy and get ANC support within the negotiations, but not without some struggles.

As we have seen, although women had low levels of representation within the power structures, an increasingly vocal and organized group of women activists were poised to build on some of the gains of the late 1980s. A strong

women's section was one potential vehicle and had already been agreed on by the ANC leadership. As part of the ANC's transformation into a political party, the ANCWL was relaunched in August 1990 as an autonomous organization. It absorbed women activists within South Africa and many returning women exiles and was able to have a significant impact. However, its position within the ANC was also somewhat uncertain. Some feminist commentators at the time pointed to its lack of support and resources (Meintjes, 1990). Its first attempt to get the ANC to adopt a quota system (of 30% women for the NEC) ended in defeat at the 48th ANC congress held in July 1991 (Meintjes, 1998, p. 78). This defeat was seen as a strategic failure by key women activists and as further evidence that on its own, the ANCWL could not successfully pressure the ANC. They were determined not to let it happen again. It reinforced the conviction of many ANC women activists of the need for a strong organized presence for women outside of the ANC and for allies in key places within the ANC hierarchy.¹¹

As a result of the complex interaction of factors, measures achieved during the transition promised to deliver some important changes in substantive representation. The interim constitution contained a commitment to gender equality within a framework of rights as did the ANC electoral platform. ANCWL activists had been instrumental in arguing that gender issues should be integrated into all ANC policy. They had helped to mainstream gender into most policy sectors in the Reconstruction and Development Programme (RDP) that served as the ANC's election manifesto and emphasized the provision of basic needs through redistribution within a social-democratic framework (Albertyn et al., 1999, p. 14). In the conclusion to these processes of transition, the final constitution—that has been called one of the most advanced liberal democratic instruments in the world—was agreed by the first parliament sitting as a constituent assembly in 1996 (Southall, 2000, p. 147). ANC women had ensured that the final version now included some more-specific clauses on domestic violence and reproductive rights, as well as gender equality as one of the founding principles of the new state, a strong and substantive equality protection, and the provision for an independent constitutional body to promote gender equality (Albertyn, 2003, p. 104).¹²

Posttransition Outcomes

How far were the gains made in the period leading up to the first democratic elections translated into significant changes in women's descriptive and substantive representation in the first two parliamentary terms? As was

expected, the ANC won a landslide victory in the elections, gaining 252 of the 400 seats in the national assembly. Since 1994, women's descriptive representation has been high in comparison to other countries. Women formed 27.7% of the first parliament, giving South Africa the 12th highest percentage of women in a legislature in global terms in 1997. This figure increased to 29.75% after the second election held in 1999. Although the choice of a closed national list proportional representation (PR) system facilitated the election of women, this high level of representation was achieved primarily because the ANC adopted a 30% quota: 32% of those of the 1994 ANC list, and 35.7% of ANC members of Parliament (MPs) were women. ANC women activists had not given up after the earlier failure of their quota proposal; and in the discussions about the procedures for deciding the electoral lists, the ANC leadership supported the inclusion of a 30% quota in their list guidelines that was maintained subsequently.¹³ Even although other parties, such as the NP, did not adopt quotas themselves, they had more women MPs than before implying that the ANC's quota had produced a contagion effect (Ballington, 1998). There were also relatively high numbers of women in government. In 1994, women formed 15% of ministers and 56% of deputies. In the second term, this figure had increased to 33% of ministers while the proportion of deputy ministers had remained constant. Women ministers and deputy ministers also held "hard" portfolios such as minerals and energy, agriculture and land affairs, and intelligence, as well as more traditional "soft" ones such as health. Many of the women entering parliament and holding senior positions within the government, such as Frene Ginwala, were feminists and had come from an activist background.

However, in contrast to the expectations associated with the achievement of "critical mass," "sheer numbers" of women in the legislature have not made the difference that had been hoped, confounding simplistic arguments about a direct link between increases in descriptive and substantive representation (Beckwith & Cowell-Meyers, 2003).¹⁴ This was partly because of who the women were and partly because of the institutional context. Despite their often-elite status, many new women MPs faced problems within parliament as a result of their own lack of relevant experience and training and the nature of the institution. Indeed, a number were so demoralized that they gave up at the end of their first term (Britton, 2002; Geisler, 2000). It has also been claimed that some women MPs gradually lost touch with women's organizations outside the electoral arena with which they had once had close relationships (P. Serote, director of GETNET, interview, July 10, 2003).

Second, although the electoral system facilitated the election of women, it also acted to reinforce party discipline as MPs felt more accountable to

party bosses than to any potential constituents. Paramount claims of party loyalty and discipline also hampered attempts to forge unity among women MPs in the multiparty women's caucus, the Parliamentary Women's Group, that was set up on an informal basis in 1997 (Hassim, 2003b, pp. 92-93). Similar claims have been made that some women ministers put their position as government ministers before other loyalties (Hassim, 2003a).

To explore how far the measures achieved during the transition have been translated into improvements in women's substantive representation and policy outcomes, we examine two areas. First, we will look at a cornerstone of the plans to improve the representation of women's interests in the state: the establishment of the national gender machinery; and then we consider specific changes in one key area of gender policy: reproductive rights.

The national gender machinery was the main vehicle intended to promote gender equality within the state. After some delays, it was established largely in the ways envisaged by feminist activists during the transition period. It was hoped that the creation of a "package" of institutions in the form of "strategic nodes" within government, the legislature, and civil society, as well as an independent statutory body, would avoid problems such as marginalization that had been experienced in other countries (Albertyn, 1995; Hassim, 2003a, p. 509). It was also assumed that a strong women's movement outside the state would play a key role in ensuring the national machinery's effectiveness and accountability.

Within the government, the Office of the Status of Women (OSW) was set up in 1997. The national structure was located in the office of the deputy president with provincial structures within the various premiers' offices. The OSW was charged with developing and implementing a national gender policy and mainstreaming gender perspectives in government departments through gender focal points (Commission for Gender Equality, 2000, pp. 59-63). Its work has been hampered by a lack of resources and staff and by bureaucratic resistance. It has been seen by many activists as a disappointment, displaying a reluctance to criticize the government and took until 2000 to produce a gender plan that emerged from a closed rather than consultative process (Goetz & Hassim, 2002). Within the legislature, the Joint Standing Committee on the Improvement of the Quality of Life and the Status of Women (JSCIQLSW) has sometimes played a prominent role and is considered a more successful part of the gender machinery, particularly when it was chaired by the feminist and former activist Pregs Govender. Established as an ad hoc committee in 1996 to monitor the progress of the Convention on the Elimination of all Forms of Discrimination Against Women (CEDAW), it was upgraded to a standing committee in 1998 after lobbying by feminists

within the ANC. It acted strategically, often in concert with the ANC women's caucus and women's organizations in civil society, to champion gender budgets and some important pieces of legislation such as the domestic violence bill (Budlender, 2000; Meintjes, 2003). The independent horizontal statutory body, the Commission for Gender Equality (CGE), envisaged in the constitution as simultaneously monitoring and stimulating transformation in South African society, was also set up in 1997. It too has been seen as relatively successful, despite its limited resources, some internal problems with leadership, and the need to maintain its critical independence of government (S. Meintjes, CGE Commissioner, interview, July 20, 2003). However, Seidman (2003) argued that a structural tension exists within it between representation (of women's voices in state) and mobilization (in support of the feminist agenda), and the two goals are often in conflict. As a result, it has moved more in the direction of mobilization over representation. But overall the national gender machinery—even parts seen as relatively successful compared to bodies elsewhere—has been hampered by a lack of resources and support from government and women's movements and has not been as effective as had been envisaged.

If we turn to examine gender outcomes in the form of policy changes, we can see that a number of measures were passed that gave women equal rights and status in customary marriage; enhanced protection against domestic violence; and improved access to maintenance. However, we focus our discussion on changes to reproductive rights policy and trace the process whereby one controversial measure, the Termination of Pregnancy (TOP) Act of 1996, became law for two reasons.¹⁵ First, because reproductive rights have been a contentious area in a number of transitions in terms of attempts to both extend and restrict reproductive choice (Gal & Kligman, 2000; Htun, 2002). Second, because TOP was, according to Albertyn (2003, p. 106), the first law passed to address issues of women's subordination, and no other law has demonstrated such extensive feminist influence on parliament. Many of the conditions that facilitated the passing of TOP were put in place during the transition and could subsequently be built on by a complex alliance of actors. Under apartheid, abortion was virtually illegal. Although some White middle-class women's groups had begun campaigning for greater access to abortion in the 1970s, it was not until 1990 that support for reproductive rights and within that some very limited support for a prochoice position developed. At the Malibongwe conference, ANC activist Frene Ginwala included reproductive rights as one of the six key gender issues for the future constitution. Specific women's research and advocacy organizations, such as the Women's Health Project, active around health and

women's rights, began to emerge in the early 1990s; and several women's conferences took up the issue of reproductive rights. Although abortion was too divisive for a broad coalition such as the WNC, the Women's Charter for Effective Equality did include reproductive rights.

The ANC too contained a range of different views; and although it initially had no public policy on abortion, it began to produce broad statements, for example, in the Constitutional Principles, in support of reproductive rights. Some key women activists and senior figures in the ANC, such as the future minister for health, were firmly prochoice (even if many rank-and-file supporters were not). As a result of their activities within the party and despite some fierce opposition, a prochoice position was incorporated into the ANC health program and the RDP. By 1994, although an openly prochoice position was still relatively unusual, the case for reproductive rights was on the agenda as part of a broad commitment to gender equality embodied within the framework of rights in the interim constitution (Albertyn et al., 1999).

After the 1994 election, the campaign to further reproductive rights centered on two issues: ensuring the inclusion of a reproductive rights clause within the final constitution and the reform of the 1975 Abortion Law. An effective sectoral alliance of women's organizations emerged, culminating in the formation of the Reproductive Rights Alliance (RRA) in 1995 to provide a united front in support of a prochoice position. It took advantage of the favorable international context and used the language of the Cairo Population Conference and the Beijing Women's Conference to lobby key ANC figures and increase levels of support in civil society. A clause entrenching reproductive rights was included within the final constitution, primarily because of the support of senior ANC men and women within the Constitutional Commission and the NEC. This provided a critical part of the framework necessary to facilitate more specific prochoice legislation. Building on ANC health policy and the RDP, the feminist and prochoice minister of health established an ad hoc parliamentary committee to consider changing the 1975 law. The RRA participated in this process formally and informally, arguing for relatively free access to first trimester abortions. Many activists utilized their close preexisting contacts with MPs. After key ANC MPs ensured a three-line whip for the vote, the Termination of Pregnancy Act was passed in 1996. The measures were achieved by a broad coalition of actors, "sympathetic insiders" within parliament and the government, and a focused sectoral alliance within civil society. Building on the gains made prior to 1994, they could use the favorable international context, existing ANC policy, and the rights framework embodied in the constitution to their advantage (Albertyn et al., 1999).

There have, therefore, been some improvements in women's substantive representation. The constitution acted as an important enabling framework in a number of areas contributing to substantial legal changes in women's civil and political rights. Despite constraints, some legislation, such as the Domestic Violence Act of 1998 and the Maintenance Act of 1998, that addressed substantive gender equality issues, was passed in the first parliament. In the posttransition context, "sympathetic insiders," now within the legislature and government, rather than "sheer numbers," continued to play key roles in ensuring that positive gender outcomes were contained in the final constitution and in new legislation. The interactions between organized women, often in the form of specific sectoral alliances, and feminists within government, the legislature, the ANC, and sometimes in the newly created gender machinery, were central to successes such as new legislation on abortion and domestic violence. Some women MPs, many of them feminists and from an activist background, organized around gender issues in the legislature, often in the ANC parliamentary women's caucus. In addition, some key feminists were able to play an important role supporting gender sensitive policy within ANC structures and within the government.

However, a number of factors circumscribed the space available for positive gender outcomes in the posttransition context. Although there have been some successes, the changes in substantive representation have been less substantial, in terms of process and outcome, than many activists had anticipated. The fall in women's organizing, reducing the issue-raising and agenda-setting capacity of women's movements envisaged as the "third prong" in the strategic alliance, has been much remarked on. This decline is not unique to South Africa and has been accompanied by the "seemingly inevitable tendency (of women's movements) to fragment in the post transition period" (Baldez, 2003, p. 268). It is most noticeable in the absence of a mass grassroots women's movement and in the decline of the broad alliance of women's organizations, represented by the WNC. Following a controversial decision, seen by many activists as a strategic error, that to maintain its autonomy, women in political parties could no longer play a leadership role within the WNC, it lost a large number of its most experienced leaders into the state and formal politics with an immediate impact on its capacity (M. Manzini, ANC official, interview, July 30, 2003; P. Serote, director of GETNET, interview, July 10, 2003; see also Kemp et al., 1995, pp. 153-154). The effect of this decision was compounded by the virtual withdrawal of the ANCWL from the organization (Hassim, 2002a, p. 727). However, a number of women's NGOs have provided research, advocacy, and training, often in concert with the CGE and JSICIQLSW, and women's sectoral coalitions have

had some success in campaigns around particular issues such as violence against women (Meintjes, 2003, pp. 157-158).

The space for women's organizing has also been reduced within the ANC. Although it maintained its overt commitment to gender equality and had a significant number of women in important positions within the party structures (women formed one third of the NEC), the ability of women activists to push for change within the ANC became somewhat circumscribed. Its relatively centralized and hierarchical structures minimized dissent and grassroots participation in party decision making. Its structures, in combination with the political system, also served to reduce the capacity of the predominantly ANC-dominated parliament to provide effective oversight of executive action (Mattes, 2002, p. 22). Finally, after disputes about leadership and direction, the ANCWL could no longer act as a base from which feminists could organize to influence key structures and decision-making processes within the party and became moribund as many experienced activists left it (Hassim, 2003b, p. 99). In addition, the links between "sympathetic insiders" and groups outside the state did not remain as close as had been envisaged.

The failure of the state gender machinery to play the role that had been hoped for it was compounded by the shift in the government's orientation, from the redistributive RDP to the more fiscally conservative Growth, Employment and Reconstruction (GEAR) policy framework. As a result, there have been implementation problems with the formal measures, for example, against gender-based violence, that require more resources and more profound social change to be fully effective. The space to introduce significant socio-economic changes, such as the Basic Income Grant, that would improve many women's social and economic rights, was also reduced after greater emphasis was placed on the need for market-led reforms and to reduce public spending. Consequently there has, according to Albertyn (2003, p. 100), been a disjuncture between these new policies and legal frameworks and the realities of gendered poverty, violence, and HIV/AIDs that many women experience on a daily basis. Therefore, in the posttransition period, some changes have been more pronounced than others. Improvements in women's descriptive representation have been easier to achieve than improvements in substantive representation; and for many women, access to civil and political rights facilitated by the enabling framework of the constitution has been more extensive than the changes to their socioeconomic rights particularly if they are poor.

We can use the kind of analysis elaborated above to help further our understanding of other cases in which organized women who are mobilized played an important part in the breakdown of authoritarian rule and then

mobilized to affect the transition but subsequently achieved less than had been hoped for.

The Chilean Case

In Chile, a range of women's movements, including human rights organizations, popular movements, and feminist organizations, successfully mobilized to articulate gender issues as part of the mass opposition to the repressive Pinochet regime that seized power in 1973 (Baldez, 2002; Chuckryk, 1991; Valenzuela, 1995). By the 1980s, some feminist activists, favoring integration rather than autonomy as a strategy, involved themselves in the opposition parties of the renovated Left, securing, for example, quotas for internal party positions, and participated in broad opposition groupings such as *Alianza Democrática* and *Asamblea de la Civilidad* (Waylen, 1998). In response to the very few women selected as candidates for the upcoming elections, an alliance of feminists and mainly center-left political women formed a women's *Concertación* in 1988 to campaign to ensure that the *Concertación*, the winning center-left coalition, engaged with gender issues and included some commitments, for example, to a women's ministry, in its manifesto (Franceschet, 2004; Waylen, 2000). However, in contrast to the South African case, fewer gender issues that had been articulated during the transition became part of the new government's policy agenda; and significant improvements in women's descriptive and substantive representation were absent in the aftermath of the transition. Without candidate quotas, parties, even on the Left, did not feel compelled to select women candidates, and fewer than 6% of the deputies were women in 1990. In the first decade after the transition, policy outcomes were also less than had been hoped for. For example, divorce did not become legal until 2004.

A number of factors were responsible. Overall, the *Concertación* was less open to gender issues than the ANC. There were also too few "sympathetic insiders" among the *Concertación* government and legislators, who were dominated by Christian Democrats (CDs) opposed, for example, to divorce and reproductive rights, to form effective alliances with key feminist actors outside. The nature of the transition, in which the outgoing military regime retained control over the subsequent institutional setup, resulted in less space for organized women to intervene in the process of transition and the absence of a new enabling framework, comparable to the South African constitution, that could facilitate important legal change (Htun, 2002). The subsequent institutional and cultural context, in which the Right

and the Catholic Church retained a huge influence, further mitigated against a range of positive gender outcomes, for example, with regard to reproductive rights. In the face of these constraints and the now-familiar decline in women's organizing, SERNAM, the national gender machinery created by the new government and led for the first 10 years by a CD, was circumscribed in its activities, preferring to concentrate on less-controversial measures (Franceschet, 2003; Schild, 1998). Therefore, although organized Chilean women (many of whom were feminists) were able to articulate gender issues and place some on the policy agenda, a number of constraints, absent in the South African case, prevented them from translating these gains into the positive gender outcomes that had been hoped for.

Conclusions

In an exception to the dominant pattern, the South African transition to democracy is one of the few that has resulted in some marked improvements in women's descriptive and substantive representation in its immediate aftermath. The analysis of this contrasting case can provide the starting point for a comparative framework that can explain some other apparently paradoxical outcomes and expand our understanding of the complex variables that interact together to produce certain gender outcomes (Waylen, 2003). Active and effective women's movements are only a necessary but not a sufficient condition for the achievement of higher levels of descriptive and substantive representation. Therefore, although we have seen that women's movements can play a key role in articulating gender issues during a transition to democracy, more was necessary to achieve positive gender outcomes in the South African case. Two other factors were required: a favorable POS and strategic organizing by key women actors. The nature of the breakdown of the preexisting nondemocratic regime and the subsequent pacted and negotiated transition were important in providing the right context for the development of particular forms of women's organizing. The character and ideology of the ANC—as an organization (and later party) that was relatively open to pressure from activists pressing gender claims and was the dominant part of the opposition and subsequently the government—was also crucial. As a result key women (often feminist) actors, in a range of locations, could then form effective strategic alliances. These strategic alliances between feminist “insiders” and “outsiders” in women's organizations were needed to place those gender issues on the policy agenda and subsequently transform them into increases in women's descriptive and substantive representation and the introduction of

certain formal measures in the posttransition period. The incorporation of the South African case into the gender and transitions literature can, therefore, help us to understand the conditions that are necessary for positive gender outcomes to occur as well as their limits, and also to explain other cases in which active women's movements were not able to achieve similarly positive outcomes.

Notes

1. *Positive gender outcomes* are defined as measurable improvements in women's descriptive (numerical) and substantive (the expression of women's interests particularly in policy making) representation. They are, therefore, contextual and relative rather than necessarily absolute.

2. For other examples in long-standing liberal democracies such as Canada and Northern Ireland, see the case studies in Dobrowolsky and Hart (2003).

3. The catchall category *women's movement* includes any movement that has women actors and leaders and makes gendered identity claims and can, therefore, represent a range of different identities, interests, and issues (Beckwith, 2000). Some scholars have already differentiated between different types of women's movement in transitions to democracy in a number of ways. For example, in Latin American transitions to democracy, human rights movements, popular movements, and feminist movements are often distinguished from one another (Jaquette, 1991).

4. There is now a large body of work on gender and transitions—much of it influenced by civil society and social movement theory (Baldez, 2002, 2003; E. Friedman, 2000). For a recent overview of the gender and transitions field, see Waylen (2003).

5. The classic exposition of the pacted transition is found in O'Donnell, Schmitter, and Whitehead's four-volume study *Transitions From Authoritarian Rule: Prospects for Democracy* (1986).

6. This approach is indebted to the kinds of historical institutionalist and path-dependent analyses advocated by a number of comparative politics scholars such as Thelen and Steinmo (1992) and Pierson (2000).

7. Federation of South African Women was made up of the ethnically based bodies of the Congress Alliance. It too was, therefore, multiracial rather than nonracial (Walker, 1982, p. 172).

8. Gender Advisory Committee focused on a limited task, ensuring women's maximum participation in the transition rather than on women's rights per se (S. Friedman, 1993b).

9. For example, submissions on a Bill of Rights made to the Convention for a Democratic South Africa (CODESA) in 1993 included papers from: Women's Health Project, Women's Legal Status Committee, Abortion Reform Action Group, and Black Sash on abortion. (See the CODESA papers held in the Centre for Applied Legal Studies, University of Witwatersrand, South Africa).

10. Sheila Camerer, National Party representative in Multi-Party Negotiating Process and member of the Women's Caucus, stressed how women from a range of parties united across party lines during the negotiations.

11. Perhaps as compensation for the defeat, the African National Congress (ANC) leadership set up the Emancipation Commission. Frene Ginwala, the deputy chair, used it as a base

outside the African National Congress Women's League to organize around gender issues within the ANC (Hassim, 2002b, p. 254).

12. For example, the right to freedom and security of the person was expanded to include freedom from violence, the right to reproductive decision making, and to security in and control over one's body. See Albertyn (2004, p. 5).

13. After the 1992 defeat, ANC women decided that a man should put forward the proposal for the national elections. The 30% quota was modeled on experiences elsewhere, to approach "critical mass" but acceptable to the party (M. Manzini, interview, July 30, 2003).

14. It is often assumed that when "critical mass" is reached (at a figure ranging between 15% to 30%) women will transform the legislative culture, norms, and values, and begin acting to promote policies that are in women's interests and that institutional change will follow.

15. The following discussion is drawn from Albertyn, Goldblatt, Hassim, Mbatha, Meintjes (1999, pp. 43-82).

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